

Mrs. Viji S vs G.Subramaniam on 26 August, 2010

Author: Ajit J Gunjal

Bench: Ajit J Gunjal

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
DATED THIS THE 26th OF AUGUST, 2010

BEFORE

THE HON'BLE MR JUSTICE A. J. RAO

WRIT PETITION No. 146 of 2010 (>315;/.iA--"r"~7(J'~) i

BETWEEN :

Mrs. Viji S V ;
W/o G. Subramaniam _
Aged about 40 years
R/o iv-i.No.11, 8?'i_Main_-V;---f= '
3*" Cross, B.'_iT.i"£._ Layout r
Bangalore. . . ,
..Petitioner
(By Sn"_i_t_: Na,n'difag'VHaiçii--p'ii'a3%;. «A;;i'\}.,) } V

AND}

G. Subrairainiyarri _ l _
S/o S, Gopaia i<ris~hnan
Aged about 45"years V
' . R/o 'C-...2w02», g.Yudhis'ti'r' Apartments
; V jN---I., Compi4ex, Anand Nagar
'Dgah'isa'r<.rV(Ea'st_)'_j..
~Mu--n1bai'-a-?i»Q0'_0'68. ..Respondent

Ti'i.is"\iVrit Petition is filed under Articles 226 & 227 of »- the Constitution of India praying to quash the orders dated "2=4..48.2009 passed on application for amendment in MC No.2/2008 vide Annexure-M on the file of II Addi. Pri.

"Judge, Family Court at Bangalore. This Writ Petition coming on for preiiminary hearing in 'B' group this day, the Court made the folowing :

o R D E R Notice of these proceedings was respondent, but however, he is-Iu'n'i"--ep'rese_.nted, it

2. The marriage respondent took place on case of the Detitioner--wife is vt'hca"t--.t~?I€\$f.'}xresVpo'ndent~husband is harassing her,' mentally for the iast 14 repairs-t wedlock they joint names by avaiiinggggibank.:i_o'afn.»ianidrthie instaiments were paid by the;pvetitioner.*Since the petitioner could not bear the at hands of the respondent, sought "'for%.Ad'iv\Io,rce.t',v'-'"" Hence, proceedings are initiated in M'C.No,2/2008 for dissoiution of marriage on the "gii'ouund of cruelty. In the said proceedings, the 'petitioner maintains an application under Order 6 Rule /vi'?

L» 1'7 CPC r/w. Section 27 of Hindu Marriage Act, for amendment of the pieading so as to incorpor'a.tei_V'th'e provision of Section 27 of the Hindu short hereinafter referred to as tot' take a pie a that the Detitioner and the ":her." 'i Learned Judge of tii:e.._h'Fan1'i'T'y'E'vi.(;§iw\th.haisivrejected the said appiication. petitioner is before thie i counsel appearing for the impugned order.

xTheV'i!eVa'rnAe.d"Judge of the Family Court has rej.e:Ctg;_1 the sa'io""a'pp|ication on two grounds one is, inciuded and aiso that the petitioner for deciaration. Indeed, it is to be hnhoticevdt" that the amendment which is sought for by it '~V_th--e5petitioner is only inciusion of the provision of law % i.e., Section 27 of the Act, which is required to be read along with Section 13 of the Act. Her specifi'c,.Vea'se_ is that the schedule property was purchased..\$i:n"t'h_e::~~.:j_Vofi-at' names of the petitioner--wife___.an_d "

husband. But however, the ewe by her. Section 27 of deals Ad,i\$.pps;a| dot.' property. Indeed, virrthe',.said',_:*precee.dings,it is open for the Court to make the decree as it deems the property which is or about the time of jointly to both the husbandland' perusal of paragraph-8 of theglgietition""di,_sel'oses that the said averment is made. . jr°ursLivant-.to--.the amendment, the petitioner proposes averments made in paragraph-8.

Indeed, that is also the finding recorded by the it ilelarnesd Judge of the Family Court. "Indeed, in V',paragraph--8 of the order, the learned Judge has J Petition stands allowed. impugned order at Annexure~M, dated 24.8.2009, stands quashed. The appiication □ed by the petitioner for amendment the pleadings is allowed.

Rule is issued and made absolute to'-the exitent§=...__ as indicated above.